CANDIDATE INFORMATION BOOKLET

Real Estate Instructor Examination

Florida dbpr Department of Business & Professional Regulation

Effective February 2025

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Statement of Nondiscriminatory Policy

The Department of Business and Professional Regulation does not discriminate among candidates on the basis of age, sex, race, religion, national origin, handicap, or marital status. Please save this document for future reference. Visit our website at: https://www2.myfloridalicense.com/examination-information/

Introduction

This Candidate Information Booklet (CIB) is designed to introduce Computer Based Testing and provide candidate information for this examination. The Department of Business and Professional Regulation has retained the services of Pearson VUE to schedule, administer, score and report the results for computer based testing. Pearson VUE is a leading provider of assessment services to regulatory agencies and national associations and offers licensing and credentialing support services to associations, state agencies, and private industry.

Your examination(s) will be administered on an electronic testing system. The testing system eliminates the use of paper, pencil and answer sheets. Candidates input their responses by entering the answer of their choice (A, B, C or D). Before you begin the examination, you will have an opportunity to go through a tutorial on the computer. The computer is very simple to operate; it should only take you a few minutes to learn to use it. The screen features a variety of function buttons to help candidates navigate through the examination. The function buttons are located in the same position throughout the test. Candidates can mark a question for review, move forward or backward one question at a time, or move to a specific question.

The summary screen, which can be accessed at any time during the examination, shows candidates the following:

- Number of questions answered
- Number of questions unanswered and/or skipped
- Time remaining for the examination

Testing Locations and Reservations

To locate a Pearson VUE Test Center near you, as well as to check that site's availability, use this link to view the vendor website for more details: https://home.pearsonvue.com/fl/realestate.

Making your Test Reservations

Candidates that already know their candidate identification number are reminded that they do not have to wait for a "Confirmation"/ "Authorization" letter to make their reservation. Candidates will receive an email test authorization with the date and test center location of your reservation.

Telephone or Internet Reservations

Call: 1.888.204.6289 and a Pearson VUE Customer Care Associate will help you to select a convenient examination date and location and answer any question you may have. The best times to call for a reservation are: Monday – Friday (8am – 11pm), Saturday (8am – 5pm), and Sunday (10am – 4pm). You may register as far in advance as you would like to test based on seat availability. However, it is strongly recommended you call at least five (5) business days before the examination date desired since reservations are made on a first-come, first-served basis.

Candidates may register via the Internet. You may submit a request via the Internet to Pearson VUE website at https://home.pearsonvue.com/fl/realestate twenty-four (24) hours a day, seven (7) days a week, provided you include a credit card number, electronic check or voucher, and valid email address.

A reservation confirmation will be returned to you via email. Examination reservations may be canceled or changed via the Internet.

Please have the following information when you call to make an examination reservation:

- Your authorization notice
- Candidate Identification number listed on your authorization notice
- Your full name, address and a daytime telephone number
- The location of the test center you desire
- The name of the examination you will be taking
- Credit card number, check, or voucher

The Examination

Content Overview and Outline

The Real Estate Instructor content overview shall be based upon a knowledge, understanding and application of real estate law, real estate principles and practices, including appraising, finance, investment and brokerage management and real estate mathematics. The instructor examination will contain three closing related cases. Each case has four associated questions. A sample closing case and a sample of questions is provided after the examination content outline. This is a closed book examination. Reference materials will not be allowed in the test room at the time of the examination. No written material other than that issued at the time of testing will be permitted.

The Real Estate Instructor's licensure examination consists of one hundred multiple choice questions. Candidates are given a total of three and half hours to complete the examination. The examination consists of questions covering twelve content areas. In addition, candidates must be familiar with the Closing Disclosure Documents, in order to answer closing related questions. The content areas, descriptions of each content area, and the percentage of the examination that covers each of these content areas are as follows.

I. Real Estate Brokerage Business (44%)
   A. Licensure Requirements
      1. Application Process
      2. Mutual Recognition
      3. Experience Requirements
      4. Education Requirements
      5. Examination
      6. Continuing Education Requirements
      7. Sales Person License Requirements
      8. Renewal
      9. Brokerage Entities Registration vs. Licensure
      10. Multiple Licenses vs. Group License
      11. Change of Address
      12. Exemptions
   B. Brokerage Entities
      1. Registered
         a. Sole Proprietorship
         b. General Partnership
         c. Limited Partnership
         d. Limited Liability Partnership
         e. Corporations
      2. Non-Registered
      3. Trade Names
      4. Office Requirements
         a. Principal Office
         b. Branch Office
         c. Entrance Signs
         d. ADA
      5. Advertising
         a. Requirements
            i. Broker/Agent
            ii. False/Misleading
         b. Blind Ads

c. Fair Housing
d. Telephone Solicitation
e. Rental Lists

C. Brokerage Ownership, Management, and Supervision
1. Capital and Start-up Costs
2. Projecting Income and Expenses
a. Projections
b. Income Sources
c. Projecting Operating Expenses
3. Tax Considerations
a. Cash vs. Accrual Method
b. IRS Concerns Regarding Employees vs. Independent Contractors
4. Personnel Issues
a. Unlicensed Activities
b. Licensed Activities
5. Recruitment
6. Application Process
a. Forms
b. Licensure Verification
7. Employment Arrangements and Agreements
8. Compensation of Sales Associates
9. Policy and Procedures Manual
10. Broker/Sales Manager Responsibilities
a. Training and Supervision of Sales Associate
b. Sales Meetings

D. Escrow Management
1. Establishing
2. Overall Rules
3. Conversion of Funds
4. Commingling
5. Earnest Money
6. Broker Held
7. Record Keeping Requirements
8. Disputes (EDO, Arbitration, Mediation, Litigation)
9. Title Company and Attorney Held
10. Brokers Commission
a. Antitrust Laws
b. Liens
11. Property Management Deposits and Advance Rent
12. Condominiums

E. Florida Law and FREC Rules
1. Inspections
2. Office Audits
a. Records, Documentation, and Compliance
b. Escrow
3. Investigator Authorities
4. Compliance Process
a. Filing Complaint
b. Investigation
c. Probable Cause Panel
d. Formal Compliant
e. Final Order
5. Violations and Penalties
a. Grounds for Denial
b. Grounds for Suspension
c. Grounds for Revocation
d. Types of Penalties
i. Administrative
ii. Civil
iii. Criminal
iv. Unlicensed Activity
6. Disciplinary Guidelines
7. Recovery Fund

II. Valuing Real Property (10%)

A. Appraisal
1. Appraisal vs. CMA Defined
a. USPAP
b. Basic Appraisal Concepts
2. Approaches
a. Sales Comparison
b. Cost-Depreciation
c. Income Capitalization
3. Comparative Market Analysis
a. Broker Price Opinion
4. Business Valuation

III. Listing and Selling Real Property (6%)

A. Concept of Agency
1. Broker Duties
B. Disclosure Requirements at First Contact
1. Residential Sales
2. Exemptions
C. Transaction Broker Relationship
D. Single Agent to Transaction Broker Transition
E. No Brokerage Relationship
F. Single Agent Relationship
G. Designated Salesperson
H. Terminating Broker Relationship
I. Legal – Titles, Deeds, etc.

IV. Contracts (7%)

A. Listing Agreements

- B. Entitlement to Commission
  - 1. Referral Fees
  - 2. Commercial Lien Law
- C. Purchase and Sale Contract
  - 1. Unauthorized Practice
  - 2. Statute of Frauds
- D. Documents for Listing Contract
- E. Real Estate Contracts
- F. Disclosures
- G. Other Contracts

V. Financing (6%)
- A. Mortgage Concepts and Practices
- B. Mortgage Loans
  - 1. Conventional
  - 2. Governmental, Insured, or Guaranteed
  - 3. Other Mortgage Types
- C. Other Techniques
- D. Federal Consumer Protection Legislation
- E. Broker's Role
  - 1. Mortgage Fraud
- F. Finance Math

VI. Closing Transactions (15%)
- A. Broker's Role
- B. Closing Steps
  - 1. Deeds
  - 2. Titles
- C. Understanding Closing Disclosures
- D. Prorating Procedures

VII. Federal Income Tax Laws (2%)
- A. Principal Residence
- B. Sale of Principal Residence
- C. Investment Operations
- D. Sale of Investment
- E. Deferring Taxes Upon Disposition
- F. Overview

VIII. Investment (5%)
- A. Investment Properties and Investor Needs
- B. Leases
- C. Mortgages
- D. Property Expenses
- E. Investment Analysis
- F. Investment Math

IX. Zoning and Planning
- A. Zoning
- B. Subdividing and Development of Land
- C. Wetlands and Ecological Issues

X. Environmental Issues (1%)
- A. CERCLA
- B. Hazards

XI. Property Management (1%)
- A. Introduction
- B. Markets
- C. Skills
- D. Rental Process
- E. Owner-Manager Relationship
- F. Residential Landlord/Tenant Act
- G. Federal and State Laws

XII. The Real Estate Market (3%)
- A. Characteristics
- B. Basic Math

Sample Closing and Questions

Seller has agreed to sell a duplex to Buyer for $170,000. Broker, who had listed Seller's property under an exclusive right of sale agreement, is to receive a commission of 7% of the sales price. Broker agreed to act as escrow agent for the parties and deposit Buyer's $3,000 binder deposit in her escrow account. Closing is to occur on July 3 and the closing day belongs to the buyer. Buyer will be getting a new 80% LTV mortgage.

A hazard insurance policy was issued to Buyer with an annual premium of $800. Buyer is to pay the policy premium at closing. The taxes on the property for this year will be $3,400.
Broker examined the duplex unit leases and found that Unit A rents for $800 per month, payable in advance on the first of each month. Unit B rents for $850 per month, payable in advance on the 16th of each month. Seller had not collected any type of deposit from the tenants.

Buyer had asked for a pest inspection and for a new survey, both conducted at Seller's expense. Broker located a pest inspector who charged $150 and a surveyor who charged $500. Seller agreed to purchase a title insurance policy for the buyer at a cost of $1,500. Buyer decided to have his

attorney participate in the closing at a cost to him of $750. Broker was advised that an $18.50 fee would be charged to record the deed. Seller is to pay this expense. All prorations will be based upon a 365-day year.

1. How much are the government transfer taxes for Buyer and Seller and where is this information placed on the Closing Disclosure?
   A. Seller $952; Buyer $204; Page Two
   B. Seller $952; Buyer $748; Page Three
   C. Seller $1,190; Buyer $748; Page Two
   D. Seller $1,190; Buyer $748; Page Three

ANSWER: C

2. How much is the Buyer's new mortgage and where is this information placed on the Closing Disclosure?
   A. $136,000 Credit to the Buyer; Page Three
   B. $136,000 Debit to the Buyer; Page Two
   C. $158,100 Credit to the Buyer; Page Two
   D. $158,100 Credit to the Seller; Page Three

ANSWER: A

3. The binder deposit on the Closing Disclosure is
   A. $11,900 Debit to the Seller; Page Three.
   B. $11,900 Credit to the Buyer; Page Two.
   C. $3,000 Debit to the Buyer; Page Two.
   D. $3,000 Credit to the Buyer; Page Three.

ANSWER: D

4. Where is the sales price placed on the Closing Disclosure?
   A. Page Three, Debit to the Seller only
   B. Page Three, Credit to the Seller, Debit to Buyer
   C. Page Three, Debit to the Seller, Credit to Buyer
   D. Page Two, Credit to the Seller only

ANSWER: B

References

The following list of Florida Law and Rules and Federal Regulations, may be of use candidates preparing for the examination.

Closing Disclosure

The following is a link to a sample Closing Disclosure that will aid in answering closing-related questions: https://files.consumerfinance.gov/f/201311_cfpb_kbyo_closing-disclosure.pdf.

Printable Law Booklet

https://www2.myfloridalicense.com/examination-information/candidate-information-booklets/

This booklet is not a study guide and is in no way intended to replace your study material which is provided by your approved Real Estate Instructor and School. This booklet is intended to provide a direct access to Chapter 475, Florida Statutes, Part I and 61J2, Florida Administrative Code. This booklet is updated continuously, but please reference the Florida Statutes and Administrative Code website before reviewing this booklet.

Florida Statutes and Administrative Code

Florida Statutes: http://www.leg.state.fl.us

Florida Administrative Code: https://www.flrules.org/

1. Chapter 475, Part I, Florida Statutes, Real Estate Brokers, Sales Associates, and Schools
2. Chapter 455, Florida Statutes: Business and Professional Regulation: General Provisions
3. Chapter 61J2, F.A.C., Division of Real Estate, Florida Real Estate Commission (FREC)
4. Chapter 20, Florida Statutes: Organizational Structure – Executive Branch
5. Chapter 83, Florida Statutes: Landlord and Tenant – Nonresidential Tenancies, Residential Tenancies, and Self-Service Storage Space
6. Chapter 95, Florida Statutes: Limitations: Limitations of Actions; Adverse Possession
7. Chapter 120, Florida Statutes: Administrative Procedure Act
8. Chapter 163, Florida Statutes: Intergovernmental Programs
9. Chapter 173, Florida Statutes: Foreclosure of Municipal Tax and Special Assessment Liens
10. Chapter 193, Florida Statutes: Assessments (Florida Green Belt Law of 1959)
11. Chapter 196, Florida Statutes: Exemptions (Homestead Exemptions, etc.)
12. Chapter 197, Florida Statutes: Tax Collections, Sales and Liens
13. Chapter 201, Florida Statutes: Excise Tax on Documents
14. Chapter 215, Florida Statutes: Financial Matters: General Provisions
15. Chapter 553, Florida Statutes: Building Construction Standards
16. Chapter 542, Florida Statutes: Combinations Restricting Trade or Commerce
17. Chapter 605, Florida Statutes: Limited Liability Companies
18. Chapter 607, Florida Statutes: Corporations
19. Chapter 609, Florida Statutes: Common Law Declarations of Trust
20. Chapter 617, Florida Statutes: Corporations Not For Profit
21. Chapter 619, Florida Statutes: Nonprofit Cooperative Associations
22. Chapter 620, Florida Statutes: Partnership Laws
23. Chapter 621, Florida Statutes: Professional Service Corporations and Limited Liability Companies
24. Chapter 673, Florida Statutes: Uniform Commercial Code: Negotiable Instruments
25. Chapter 689, Florida Statutes: Real and Personal Property: Conveyances of Land and Declarations of Trust
26. Chapter 695, Florida Statutes: Record of Conveyances of Real Estate
27. Chapter 701, Florida Statutes: Assignment and Cancellation of Mortgages
28. Chapter 712, Florida Statutes: Marketable Record of Titles to Real Property
29. Chapter 718, Florida Statutes: Condominiums
30. Chapter 719, Florida Statutes: Cooperatives

31. Chapter 720, Florida Statutes: Homeowners' Associations
32. Chapter 721, Florida Statutes: Vacation and Timeshare Plans
33. Chapter 725, Florida Statutes: Unenforceable Contracts
34. Chapter 726, Florida Statutes: Fraudulent Transfers
35. Chapter 727, Florida Statutes: General Assignments
36. Chapter 732, Florida Statutes: Probate Code: Intestate Succession and Wills
37. Chapter 733, Florida Statutes: Probate Code: Administration of Estates
38. Chapter 760, Florida Statutes: Florida Civil Rights
39. Chapter 865, Section 865.09: Florida's Fictitious Name Act

Federal Regulations and United States Code

1. Title 12, Chapter 27, Sections 2601 through 2617, United States Code: Real Estate Settlement Procedures
2. Title 15, Chapter 41, Subchapter I, Part A, Sections 1601-1615, United States Code: Consumer Credit Cost Disclosure (Truth-In-Lending Act)
3. Title 15, Chapter 41, Subchapter IV, Section1691 through 1691f, United States Code: Equal Credit Opportunity Act
4. Title 15, Chapter 42, Sections 1701-1720, United States Code: Interstate Land Sales Full Disclosure
5. Title 42, Chapter 21, Sections 1981 through 2000h-6, United States Code: Civil Rights (Civil Rights Act of 1964, Civil Rights Act of 1991, etc.)
6. Title 42, Chapter 45, Section 3601 through Section 3631, United States Code: Fair Housing (amended in 1988) (Title VIII, Civil Rights Act of 1968)
7. Title 42, Chapter 63A, Section 4851 through Section 4856, United States Code: Residential Lead-Based Paint Hazard Reduction
8. Title 42, Chapter 126, Sections 12101 through 12213, United States Code: Equal Opportunity for Individuals with Disabilities (American Disabilities Act of 1990 and Rehabilitative Act of 1973) http://www.usdoj.gov/crt/ada/adahom1.html

Pilot Testing

The Examination may contain a small number of experimental or "pilot test" questions. The purpose of including pilot test questions within the examination is to expand and improve the bank of questions from which future examinations will be drawn. This is a common practice used by many national and state examination programs and is a critical step in ensuring the continued reliability and validity of these examinations.

In the event that pilot test questions are included within the examination, these questions will NOT be counted when computing scores. Additional time will be given for answering the pilot test questions. The time allowed for testing has been evaluated to ensure there is adequate time for completing test questions and pilot questions.

Pilot questions are NOT identified. If the pilot questions were identified, many of the candidates would skip them, and the results would not be valid. The development of a good examination requires accurate candidate response information for the pilot questions.

Test Taking Advice

The advice offered here is presented primarily to help you demonstrate knowledge and maximize your chances of passing the examination.

- Read all instructions carefully.
- For best results, pace yourself by periodically checking your progress. This will allow you to make any necessary adjustments.
- Be sure to record an answer for each question, even the items about which you are not completely sure. You can note the questions you wish to reconsider on the computer testing system and return to them later.
- Alert a Proctor or Test Center Manager to any problems that may occur during the examination. Do not wait until the examination is over to inform someone about a problem.

Supplies

It is expressly understood by each candidate that the State of Florida, and/or the Department of Business and Professional Regulation, and the Department's staff hereby assume absolutely no liability of any nature whatsoever for any items of the candidate's personal property which may have been brought to, left at, or left outside the examination site.

It is further understood that the candidate's admission to the examination shall hereby constitute the candidate's full, knowing, and complete waiver of any and all such claims against the State of Florida, and/or the Department of Business and Professional Regulation, and the Department's staff.

What to Bring

All candidates <u>will be required</u> to bring the following items to the testing center on the day of the examination:

- Two forms of valid signature identification, one of which is government issued: driver's license, state identification card, passport or military identification card. Student or employment I.D. cards and photo bearing credit cards are not acceptable as picture bearing identification. Candidates will not be admitted without showing proper identification. Your name and address must match what was submitted on your application.
- Florida Division of Real Estate Authorization Notice (if received prior to testing), and your Certificate of Pre-licensing Education Completion. If the original was mailed to the Division of Real Estate with the authorization application, a photocopy should be brought to the assessment center.
- Calculators are permitted if they are silent, hand-held, battery-operated, nonprinting, and without an alphabetic keypad. Standard (nonprinting) four-function electronic calculators are recommended for the Instructor examination; however, financial calculators with an alpha button are allowed. This includes but is not limited to financial calculators like HP 12, 17, 18, 19; TX Inst. BA Series and Calculated Industries Qualifier Plus. The device cannot be an information storage device, such as a PDA, Palm Pilot, or word processing device.
- To better serve our "English as a second language" candidates, the Bureau of Education and Testing is permitting the use of foreign language translation dictionaries during the

examination. Translation dictionaries shall contain word-for-word or phrase translations ONLY. Dictionaries that contain definitions of words, explanations of words, or handwritten notes may NOT be used.

- Electronic translation dictionaries are NOT recommended as most will have more than word-for-word or phrase translations, an alphabetic keypad, have mathematical formulas and stored memory capabilities. Should these electronic translation devices have these capabilities; these devices WILL be rejected by the Proctor or Test Center Manager in NOT being suitable for the test site environment.
- Testing Center staff will inspect and approve each dictionary before it can be used during the examination. In order to maintain security and to ensure fairness to all candidates, candidates are limited to the use of a single dictionary.
- If you have any questions concerning acceptable translation dictionaries, please contact the Bureau of Education and Testing at 850.487.1395.

What not to Bring

Unauthorized supplies, those not listed in this Candidate Information Booklet, will be subject to removal by the Department's representative at the examination site. Personal items are not permitted in the examination room. Any personal items such as toiletries, snacks, etc. must be encased in a clear plastic bag, no larger than 8" X 11" in size and kept in the locker provided by the vendor.

The following items are NOT allowed in the examination room:

- Cameras, tape recorders, or computers
- Pagers, electronic transmitting devices, or telephones (watches with alarms or beepers should be set so that they will NOT sound or go off during the examination administration)
- Any bound or loose leaf reference materials and notes
- Dictionary, thesaurus, or other spelling aids
- Canisters of mace, pepper spray, or other personal defense items
- Purses, briefcases, portfolios, fanny packs, or backpacks

Administrative Policies

Change and Cancellation Policies

If you wish to cancel your exam, you must contact Pearson VUE **2 days** prior to your scheduled appointment. Cancelling an exam less than **2 days** prior to your appointment or missing your exam may result in forfeiting your exam fees.

Absence Policy

If you are unable to attend the examination for which you were scheduled, you may be excused for the following reasons:

- Your illness or that of an immediate family member
- Death in the immediate family

- Disabling traffic accident
- Court appearance or jury duty
- Military duty

All candidates seeking excused absences must submit written verification and supporting documentation of the situation to Pearson VUE no later than four days after the original examination date. Documentation of medical absences must have the original signature of the medical practitioner. Stamped signatures will NOT be accepted. **You will be required to pay your examination in full, and possibly reapply to DBPR, if you do not show up for your exam appointment.**

Admission to the Examination

When registering at the test center, you will be required to have the following items:

- Two forms of valid signature identification, one of which is government issued: driver's license, state identification card, passport or military identification card. **Student or employment I.D. cards and photo bearing credit cards are not acceptable as picture bearing identification.** Candidates will not be admitted without showing proper identification. Your name and address must match what was submitted on your application.
- Florida Division of Real Estate Authorization Notice (if received prior to testing).

Admission Procedures

- Please report to the test center thirty (30) minutes prior to your scheduled examination. As part of the checking–in process, a photo will be taken of the candidate prior to taking the exam. This photo will be visible on the candidate's exam result report. The Test Center Manager will assign you a seat and assist you with the computer. You may take up to fifteen (15) minutes to complete the tutorial and the Test Center Manager will answer any questions you may have about the computer testing unit at this time.
- The time you spend on the tutorial will NOT reduce the time allotted for taking your examination. When you feel comfortable with the computer testing unit, you may begin your examination. The time of the examination begins the moment you look at the first question on your examination.
- Your specific reporting time will be given to you when you make your examination reservation. Please allow yourself sufficient time to find the test center. Make sure you have all necessary documentation before you report for registration.
- At the completion of the examination, your score report will provide instructions on the next step of the licensure process.
-

Late Arrivals

Test Center Managers will review the daily schedule for that day to determine if the candidate can be accommodated due to tardiness. If the tardiness was caused by an emergency (i.e., car trouble, traffic accident, etc.) the candidate must provide documentation of the event. If the candidate cannot be accommodated due to unexcused tardiness, they will be liable for the test fee for that day in addition to the new test fee and classified as a "No Show."

Rules for the Examination

- The examination materials, documents, or memoranda of any kind are not to be taken from the examination room.
- Listen carefully to the instructions given by the Test Center Manager and read all directions thoroughly. Test Center Managers are NOT qualified or authorized to answer questions concerning examination content. However, if you have any procedural questions, they will do their best to assist you.
- If you have a concern about the content of an examination question, please request a "Candidate Comment Form."
- You must have the Test Center Manager's permission to leave the examination room. You will NOT be allowed additional time to make up for time lost.
- Smoking will not be permitted in an examination room or in the restrooms, based on the October 1985 Florida Clean Indoor Air Act.
- Do not bring food into an examination room. If applicable, a lunch break will be provided. Drinks are allowed in spill proof containers. Children and visitors are NOT allowed in the test center.
- You are NOT permitted to take personal belongings such as briefcases, large bags, study materials, extra books, or papers into the testing room. Any such materials brought into the testing room will be collected and returned to you when you have completed the test. Pearson VUE and the Department are NOT responsible for lost or misplaced items.
- Under NO circumstances will you be permitted to work beyond the time allotted for the examination. Time limits are generous; you should have ample time to answer all questions and check all work.

Apparel

Please dress comfortably, but appropriately, for the examination. The examination room is usually climate controlled. However, it is not always possible to maintain a temperature suitable to each candidate, and from time to time there are maintenance problems beyond the Department's or Pearson VUE's control. It is suggested that you bring a sweater or jacket in case the temperature is cooler than your individual preference.

Change of Address

If an address change occurs after your examination administration, please make corrections at https://www2.myfloridalicense.com/online-services/ or by completing the change of address form provided at the end of this booklet.

Change or Correction of Name

If you have a name change or correction, please send a copy of notarized legal documentation to the Central Intake Unit-License Maintenance immediately.

Special Testing Accommodations

The Department of Business and Professional Regulation certifies that it will comply with the

provisions of the Americans with Disabilities Act (42 USCG Section 12101, et seq.) and Title VII of the Civil Rights Act, as amended (42 U.S.C.2000e, et seq.), in accommodating candidates who, because of a disability, need special arrangements to enable them to take an examination.

All applicants for an examination or a reexamination who desire special testing accommodations due to a disability must submit an application to the Special Testing Coordinator prior to each exam. The application can be found at: https://www2.myfloridalicense.com/servop/testing/documents/ada_applic.pdf.

The application for accommodation must be completed and returned to the Bureau of Education and Testing at:

Department of Business and Professional Regulation
Bureau of Education and Testing
Special Testing Coordinator
2601 Blair Stone Road
Tallahassee, Florida 32399-0791

For more information regarding special testing accommodations, please our visit webpage at: https://www2.myfloridalicense.com/examination-information/special-testing-accommodations/.

Scoring Information and Grade Notification

Scoring Procedures

All questions are equally weighted. The grading process includes a statistical analysis of each question on the examinations. Questions found to be statistically deficient are subject to further review. In the event that this review leads to a change in the answer key that affects your score, you will be sent an amended grade report 2-3 weeks after the examination.

The Real Estate Instructor Licensure examination shall be graded on the basis of 100 points for a perfect examination. A candidate who receives a grade of 75 points or higher will have successfully passed the examination.

Notification of Results

All candidates will receive an official photo-bearing exam result report immediately following completion of their examination. Please verify that all information is correct on your exam result report prior to leaving the test center.

Examination Review and Fees

Candidates who fail an examination are entitled to review the questions they answered incorrectly, under such terms and conditions as may be prescribed by the Department of Business and Professional Regulation. Candidates are entitled to review only their most recent examination. The candidate shall be permitted to review only those questions the candidate answered incorrectly.

The request to review must be made within 21 days from the date of the examination and can be

scheduled by going online to: https://home.pearsonvue.com/ or by calling 1.888.204.6289. The same security requirements observed at the examination will be followed during the review session. Reviews will be held at a Pearson VUE testing center.

While DBPR fees for applications and licensure are being reduced to offset the increases in examination fees, candidates may still visit the Pearson VUE Web Page to purchase vouchers for their examinations before the new fees take effect on January 3rd. The vouchers can be redeemed within 12 months from the date they are issued, and allow candidates to pay for their examinations at current prices before the new fee amounts go into effect on January 3rd.

Review Session

The review session is considered to be an extension of the examination administration. Only the candidate may attend the review session. Proper identification is required to obtain entry. There will be no talking or note taking of any kind. Candidates are usually given one-half of the exam administration time. For example, a 2 hour and 30 minute examination will only receive 1 hour and 15 minutes to review. Candidates will not be able to see their original exam book since it is not retained after the exam. If you would like the ability to review your exam, please register to take the exam at one of the testing centers.

Challenge Process

Written challenges are accepted for DBPR developed examinations. Candidates are given an opportunity during the review session to note in writing, on the computer, any objections they have to questions answered incorrectly. The challenges are forwarded to the Bureau of Education and Testing for review by a Psychometrician and subject matter experts to determine if there is any merit to the candidate's objection.

The response time to challenges, on average, is approximately 21 days. Due to the confidential nature of the examinations, the only response you will receive is "credit" or "no credit" for each challenged question. Credit will only apply to the candidate who reviewed and challenged. Per Rule 61-11.017(g) the candidate's challenges must be submitted in writing during the scheduled review. Any challenges or supporting documentation submitted after the candidate has left the review room shall not be accepted.

For informal review and formal hearing procedures visit: https://www2.myfloridalicense.com/examination-information/examination-reviews-and-hearings/.

Appendix

Points of Contact

Please contact the appropriate office for questions regarding the following:

Application Policies and Fees
Customer Contact Center
2601 Blair Stone Road
Tallahassee, Florida 32399-0791
850.487.1395

Scheduling, Grade Notification, and Reviews
Pearson VUE, Inc.
Customer Care at 1.888.204.6289
Website: https://home.pearsonvue.com/
Fax-Back System at 1.800.274.8920

Formal Hearings
Department of Business and Professional Regulation
Bureau of Education and Testing
2601 Blair Stone Road
Tallahassee, Florida 32399-0791
850.487.1395

Requests for Special Testing Accommodations
Department of Business and Professional Regulation
Bureau of Education and Testing
Special Testing Coordinator
2601 Blair Stone Road
Tallahassee, Florida 32399-0791
BETSpecialTesting@myfloridalicense.com

For information regarding hotels or directions to the examination site, contact the Chamber of Commerce in the city where your examination has been scheduled.

Visit our website at:
https://www2.myfloridalicense.com/examination-information/

Please fill out the change of address form below and return to:

Florida Department of Business and Professional Regulation
Central Intake Unit – License Maintenance
2601 Blair Stone Road
Tallahassee, Florida 32399-0791
Fax: 850.487.9529

Address Change Form

Please type or print in the appropriate spaces below if you have a change of address correction.

Name: _____

*Social Security #: _____

Examination Date: _____

Candidate Number: _____

Phone Numbers: _____
Area Code/Home Number Area Code/Work Number

Old Address: _____

New Address: _____

Signature: _____

NOTE: If your name has changed, please use your prior name on this form and contact the Central Intake Unit for name change information.

*Under the Federal Privacy Act, disclosure of Social Security Numbers is voluntary, unless specifically required by Federal Statutes. In this instance, Social Security Numbers are mandatory pursuant to Title 42, United States Code, Sections 653 and 654; and Sections 455.203(9), 409.2577, and 409.2598, Florida Statutes. Social Security Numbers are used to allow efficient screening of applicants and licensees by a Title IV-D child support agency to assure compliance with child support obligations. Social Security Numbers must also be recorded on all professional and occupational license applications, and will be used for licensee identification pursuant to the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (Welfare Reform Act), 104 Pub.L. 193, Sec. 317.

Common Abbreviations and Definitions

Abbreviations	Definitions
DBPR	Department of Business and Professional Regulation
F.S.	Florida Statute
F.A.C.	Florida Administrative Code
BET	Bureau of Education & Testing
ADA	Americans with Disability Act
CBT	Computer Based Testing
CE	Continuing Education
CIB	Candidate Information Booklet
BCAIB	Building Code Administrators and Inspectors Board
ICC	International Code Council
FBC	Florida Building Commission
CILB	Construction Industry Licensing Board
ECLB	Electrical Contractors' Licensing Board
FAQ	Frequently Asked Questions